

the claimed sub-range met the criteria (a) and (b), the board judged that the subject-matter of claim 1 was new.

In T 261/15 the board stated that in the case of an alloy composition, a disclosure of a combination of the different alloying elements within the claimed ranges was necessary for a finding of lack of novelty. Since the different alloying elements interacted with each other to form precipitates and solid solutions, their content ranges were not to be considered in isolation but in combination. Regarding the limit values, the appellant (opponent) had argued that these values were explicitly disclosed and that in order to recognise novelty of a sub-range selected from a broader numerical range of the prior art the selected sub-range had inter alia to be sufficiently far removed from the end-points of the known range. However, the approach taken by the appellant (opponent) was an exercise in cherry-picking within the disclosure of D1, which created a novel combination of features that was not disclosed in D1. In respect of the argument on sub-ranges needing to be sufficiently far removed – recited as a condition in the Guidelines (G-VI, 8 (ii) (b) – November 2017 version) for acknowledging novelty of a numerical selection – neither T 198/84 nor T 279/89 (cited in that passage of the Guidelines) stipulated this condition. In the view of the board, the limit values of a known range, although explicitly disclosed, were not to be treated in the same way as the examples. And concerning criterion (c), which by contrast to the first two criteria (a) and (b), went beyond the comparison of the invention defined in the claims with the disclosure of the prior art, because it considers the presence of an effect of the claimed invention, the board considered that whether the claimed selection was purposive or not was more a question of inventive step than of novelty. D1 was not novelty destroying. The Guidelines have since been amended and criterion (c) has been deleted, with reference to this decision.

In T 40/11 the board stated that it may be questioned whether the third criteria mentioned in T 198/84 (see above) has to be considered when assessing novelty.

6.3.2 Overlapping ranges

In decision T 666/89 (OJ 1993, 495) the board gave a ruling on novelty assessment in cases of overlapping numerical ranges. The patent related in particular to a shampoo comprising 8-25% anionic surfactant and 0.001-0.1% cationic polymer. In an earlier patent application a shampoo composition had been disclosed containing 5-25% anionic surfactant and 0.1-5.0% cationic polymer. The board held that the composition was not new. In the board's view, there was no fundamental difference between examining novelty in situations of so-called "overlap" or "selection", and in doing so in other situations, although it might be helpful, in order to verify a preliminary conclusion of a novelty examination in cases of overlap, to investigate whether or not a particular technical effect was associated with the narrow range in question. It needed to be stressed, however, that such a particular effect was neither a prerequisite for novelty nor could it as such confer novelty; its existence could merely serve to confirm a finding of novelty already achieved. The term "available" in Art. 54(2) EPC 1973 clearly went beyond literal or diagrammatical description, and implied the communication, express or implicit, of technical information by other means as well. Thus it was clear that matter that was hidden, not in the sense of being deliberately concealed but rather in the sense of being reconditely submerged in a

document, would not have been "made available" in the above sense. In the case of overlapping ranges of physical parameters between a claim and a prior art disclosure, what would often help to determine what was "hidden" as opposed to what had been made available was whether or not a skilled person would find it difficult to carry out the prior art teaching in the range of overlap. Provided the information in the prior art document, in combination with the skilled person's common general knowledge, was sufficient to enable him to practise the technical teaching, and if it could reasonably be assumed that he would do so, then the claim in question would lack novelty. Novelty was carefully analysed on the basis of comparable considerations in T.366/90 and T.565/90.

Decision T.26/85 (OJ 1990, 22) suggested, as a specific test for determining whether a technical teaching had been made available to the public, posing the question whether the person skilled in the art would in the light of the technical facts **seriously contemplate** applying the technical teaching of the prior art document in the range of overlap. If it could be fairly assumed that he would do so, it had to be concluded that no novelty existed. This formulation of the question was adopted inter alia in T.279/89, T.666/89 (OJ 1993, 495), T.255/91 (OJ 1993, 318), T.369/91 of 7 October 1992, T.631/92 and T.660/93.

In T.751/94 the board regarded it as clear that the method according to the cited document was not to be carried out in the overlapping range, and consequently the overlap did not deprive the claimed invention of novelty. In addition, the combination of parameters in the claimed invention was not disclosed in, and was not clearly derivable from, the cited document.

In T.240/95 the appellant had argued that 0.5 to 60 minutes would not include 60 minutes as such inclusion would have to be worded "0.5 up to and including 60 minutes." The board held that, in accordance with established case law, disclosure of a range was considered to be an explicit disclosure of the end values.

In T.594/01 the board stated that it was common general knowledge that every experimental measurement in quantitative analytical chemistry as well as any result of any physical measurement could not be dissociated from the margin of uncertainty attached to the measurement. Normally, the uncertainty of a measured experimental value was irrelevant for the assessment of novelty. However, when a specific experimental value was disclosed in an example of prior art, seeking to distinguish the claimed subject-matter therefrom only in terms of an upper limit to be required to be "lower than" the experimental value must fail, as the claimed subject matter is still not distinguishable from the prior art within the margin of experimental error (see also T.708/05; T.386/17 – angle of "more than 0 degrees").

In T.1115/09 D1 disclosed that the gas at the outlet of the catalytic bed contained no more than about 10 ppm oxygen, i.e. a range of oxygen concentrations ending with the upper value of "about 10 ppm". According to the boards' established case law (see T.240/95), the disclosure of a range was an explicit disclosure of the end values. In the case at issue, it followed by analogy that the end value "about 10 ppm" was explicitly disclosed in D1. The question to be answered was whether this end value fell within the range defined in claim 1 at issue, i.e. "more than 10 ppm oxygen and up to 250 ppm". In the board's view,

in the absence of a clear definition in document D1 of the relative term "about", the expression "about 10 ppm of oxygen" was to be given its broadest meaning, namely "10 $\pm$ epsilon ppm of oxygen". As the value "10+epsilon" was synonymous with the value "more than 10", the choice of the latter as the lower end of the range defined in claim 1 thus boiled down to the selection of one discrete value within the list of three disclosed in D1: "10-epsilon", "10" and "10+epsilon". The board referred to T.730/01, according to which the selection of one item within one single list of equivalent alternative items did not confer novelty, concluded that the disclosure of document D1 inevitably led to subject-matter falling within the scope of protection of claim 1.

In T.1571/15 the overlap between the composition as claimed and the broad composition of D1 was narrow. D1 disclosed a preferred composition range and there was no pointer to work outside this range. The board stated that while it was true that the person skilled in the art might seriously contemplate working in the centre region of a prior art range when no other pointer (for instance in the form of examples of preferred ranges) to another region was present, this was no longer true if, as in the present case, such a pointer was present and was directed to another region.

6.3.3 Multiple selection

In T.245/91 the patent proprietors contended that the subject-matter of claim 1 amounted to the purposeful selection of a small area from the very broad disclosure in the document. The board observed that most of the ranges in claim 1 of the patent in suit could be obtained by narrowing down the ranges according to the cited document by approximately 25 to 80% and restricting them to their central portion, and that in a situation like this, where several ranges of parameters were to be considered, a careful comparison had to be carried out in order to assess whether or not the subject-matter of the claimed invention was available to the skilled person. Any obviousness considerations were to be strictly avoided. Referring to T.666/89 (OJ 1993, 495), the board emphasised that, under the Convention, novelty had to be decided by reference to the total information content of a cited prior art document. In the board's judgment, the combination of the relevant features would not have been seriously contemplated by the skilled reader and was not made available to him, because the said features were not prominent in the cited document and did not therefore lend themselves to an unambiguous, implicit disclosure. A further point to consider was the number of parameters used to define the claimed subject-matter, since each of the ethylene polymers was characterised by several parameters. The board held that, even if most of the ranges for these parameters corresponded to a more or less central portion of the range which limited the corresponding parameter in the composition according to the cited document, as a result of the number of parameters involved, which exceeded ten, the scope of the claimed blends was in reality quite narrow with regard to the breadth of the definition of the known composition. This was also the reason why the argument that there had been an implicit description of this narrow selection in the prior document was not accepted (see also T.440/04, T.1196/05).

In case T.653/93 the appellant argued that the process of claim 1 was novel as it referred to a combination of three process features with selected ranges and product features with

specific limits, a combination not disclosed in the prior art document. The board of appeal emphasised that in such situations the question of novelty could not be answered by contemplating the ranges of the various parameters separately. This would, in the board's judgment, be an artificial and unjustified approach, since it was not the specified ranges of the three parameters or their agglomeration that formed the subject-matter of claim 1, but the group of processes defined by the combination of these ranges, which was rather small when compared with the group of processes disclosed in the prior art document. Thus the claimed group of processes, characterised by the combination of three specific process parameters, was not explicitly disclosed in the prior art document and therefore could be said to result from a "multiple (i.e. threefold) selection". The novelty of the technical teaching of claim 1 was corroborated by experimental evidence showing that the products resulting from the claimed processes could not have been obtained by processes which were close to but nevertheless outside the range of the processes claimed. It followed that the subject-matter of claim 1 was not considered as having been disclosed in the prior art document (see also T. 1095/18).

In T. 65/96 there was no mention in prior art document D2 of a rubber-reinforced copolymer having the combined features forming the solution of the technical problem addressed in the opposed patent. The board pointed out that the argument of the appellant (opponent) that all the relevant parameters had been mentioned "within a few lines" was irrelevant, because the location within the document of a disclosure did not in itself suffice to show the true contextual relationship of the parameters, let alone establish that they were disclosed in combination, as required by the solution of the technical problem. In any case, one of the parameters was referred to in a quite separate section of the disclosure. Furthermore, closer examination of D2 showed that the parameters relating to the amount of rubber and the particle size of rubber, were merely disclosed as independent ranges without any indication as to how, or indeed whether, they might vary in relation to one another. Whilst it was conceded by the respondent at the oral proceedings that D2 disclosed ranges partly overlapping with those defined in the solution of the technical problem, the latter required the simultaneous fulfilment of three values of the same parameters. The board came to the conclusion that the claimed solution was not arbitrary since it solved a specific technical problem compared with the products according to D2. Hence, the claimed solution, to the extent that it overlapped at all with the general disclosure of D2, represented a narrow selection therefrom and fulfilled all the requirements of a true selection (see T. 198/84, OJ 1985, 209).

In T. 1834/13 the appellant argued that D7 destroyed the novelty of claim 1 because it described all its features, which meant that an embodiment, although not literally disclosed, had been made publicly available (implicit disclosure). Conceding that there was some overlap, the board nonetheless held that, although D7 encompassed the tapes according to claim 1 as a concept, it did not disclose them directly and unambiguously. The subject-matter of claim 1 was a specific combination resulting from a multiple selection from among the alternatives proposed in D7 but there was no incentive in D7 to choose that combination. T. 198/84 and T. 65/96 did not apply because they did not concern multiple selections.

6.4. Subject-matter group

T 763/89 considered the issues raised by making a selection from a generically defined group of multilayer materials. The patent related to a reversal colour photographic material comprising three layers having differing colour sensitivity, each layer comprising a further three layers having the same colour sensitivity but differing photographic sensitivity. The closest prior art consisted of a reversal material with "at least two" layers. The opponent had argued that the multilayer materials disclosed by this prior art also included the three-layer material claimed, therefore causing lack of novelty. The board, however, held that it was new: although "at least two" was synonymous with a multilayer material and set the lower limit in the form of a double-layer material (the description related to any multilayer material without specifying an upper limit for the number of possible layers), the only theoretical examples given for such multilayer materials were double-layer materials. Nor did the documents cited in support of the opposition as much as hint at a three-layer material. It might appear logical for a three-layer material to form part of the group of multilayer materials in the cited documents, but this did not mean that it was thereby disclosed. On the contrary, it was a new material forming part of this group and selected from it. The board handed down this ruling in the context of previous case law on selection inventions involving chemical substances. This had provided that a technical teaching was prejudicial to novelty if it disclosed a substance in individualised form, i.e. one clearly distinguishable from structurally similar substances. This principle for assessing the novelty of individuals as distinct from a group could be applied to things such as the photographic material in question, which was clearly distinguishable from other things forming part of the same generically described group.

7. First and second medical use

7.1. First medical use

7.1.1 Introduction

Under Art. 53(c) EPC methods for treatment of the human or animal body by surgery or therapy and diagnostic methods practised on the human or animal body ("medical methods") are excluded from patentability; this provision shall not apply to products, in particular substances or compositions, for use in any of these methods.

Art. 54(4) EPC (former Art. 54(5) EPC 1973) provides that the general rules of law relating to novelty do not exclude the patentability of any substance or composition, comprised in the state of the art, for use in a method referred to in Art. 53(c) EPC (former Art. 52(4) EPC 1973), provided that its use for any method referred to in that paragraph is not comprised in the state of the art. Thus in addition to the general concept of novelty, this article introduces, in respect of substances and compounds used in surgical and therapeutic treatment and in diagnostic processes carried out on humans and animals, a **special concept of novelty** unknown in other technical fields (T 128/82, OJ 1984, 164).

The new Art. 54(4) EPC, which corresponds to the former Art. 54(5) EPC 1973, was not intended to introduce any fundamental change. Both provisions relate to what is known as